

23STCV01336 23STCV01336

County: los-angeles

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Case Number: 23STCV01336 Hearing Date: July 1, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

URBAN

COMMONS DANBURY, LLC, et al.,

vs.

CLAYDON

HILL INVESTMENTS LTD, et al.

Case No.:

23STCV01336

Hearing Date: July 1, 2026

Plaintiff Urban

Commons Frontera, LLC's motion for leave to file a sixth amended complaint is denied.

Plaintiff

Urban Commons Frontera, LLC ("Frontera") ("Moving Plaintiff") moves for an order granting leave to file a sixth amended complaint ("6AC") on the basis the 6AC narrows the operative complaint, clarifies the factual basis for the conversion cause of action, and does not add any additional causes of action. (Notice Motion, pg. 2.)

Procedural

Background

On January 23, 2023, Plaintiffs filed their initial Complaint against Defendants alleging five causes of action: (1) breach of contract; (2) fraud; (3) unfair business practices; (4) breach of covenant of good faith and fair dealing; and (5) conversion.

On August 16, 2023, Plaintiffs filed their first amended complaint ("FAC") alleging the same five causes of action.

On April 9, 2024, Plaintiffs filed their second amended complaint ("SAC") alleging six causes of action: (1) promissory fraud; (2) breach of contract; (3) conversion; (4) violation of Penal Code §496; (5) breach of fiduciary duty; and (6) reformation of contract.

On July 30, 2024, Plaintiffs filed their third amended complaint ("TAC") alleging the same six causes of action.

On November 26, 2024, Plaintiffs filed their fourth amended complaint ("4AC") alleging four causes of action: (1) promissory fraud; (2) breach of contract; (3) conversion; and (4) violation of Penal Code §496.

On June 4, 2025, Plaintiffs filed the operative fifth amended complaint ("5AC") alleging the same four causes of action.

On March 3, 2026, this Court ruled on Defendants' motion for summary adjudication, granting summary adjudication of the 4th cause of action for violation of Penal Code §496.

On May 6, 2026, this Court ruled on Defendants' motion for summary judgment, denying the motion on the grounds that there existed a triable issue of material fact.

Moving

Plaintiff filed the instant motion on April 1, 2026. Defendants filed their opposition on May 27, 2026. Moving Plaintiff filed its reply on June 2, 2026.

Motion for Leave to Amend

“The

court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” (C.C.P. §473(a)(1).)

“Trial

courts are vested with the discretion to allow amendments to pleadings ‘in furtherance of justice.’ That trial courts are to liberally permit such amendments, at any stage of the proceeding, has been established policy in this state since 1901.” (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 488-489.)

CRC

Rule 3.1321(a) requires that a motion to amend must: “[i]nclude a copy of the proposed . . . amended pleading . . . [and] state what allegations in the previous pleading are proposed to be [deleted and/or added], if any, and where, by page, paragraph, and line number, the [deleted and/or additional] allegations are located.”

CRC

Rule 3.1324(b) provides, as follows: “[a] separate declaration must accompany the motion and must specify: (1) [t]he effect of the amendment; (2) [w]hy the amendment is necessary and proper; (3) [w]hen the facts giving rise to the amended allegations were discovered; and (4) [t]he reasons why the request for amendment was not made earlier.”

Moving

Plaintiff's motion substantially complies with CRC Rule 3.1324(a). The motion includes a copy of the proposed 6AC. (Decl. of Holmes ¶5, Exh. 1.) Moving Plaintiff's notice of motion does not set forth the allegations proposed to be added and deleted, and where, by page, paragraph, and line number. However, Moving Plaintiff's counsel attaches a redline of the 6AC indicating where changes have been made to Moving Plaintiff's pleading. (Decl. of Holmes ¶6, Exh. 2.)

Moving

Plaintiff's motion does not substantially comply with CRC Rule 3.1324(b). Moving Plaintiff's counsel fails to state when the facts giving rise to substantive amended allegations were discovered and why the request for amendment was not made earlier.

Moving Plaintiff's counsel's declaration specifies the effect of the amendments and explains why the amendments are necessary and proper. (See Decl. of Holmes ¶¶3-4.) Moving Plaintiff asserts the amendments are necessary to make the balance of the case regarding contract claims clearer. (Decl.

of Holmes ¶4.) The Court notes

Moving Plaintiff's counsel's declaration indicated that the 6AC also attempted to clarify the 4th cause of action, which has since been summarily adjudicated by this Court. (See 3/3/26 Ruling on Submitted Matter.)

In light of the fact that Moving Plaintiff does not explain the delay in revising the complaint, or the fact that the proposed 6AC would include a now-summarily adjudicated cause of action, which would defeat Moving Plaintiff's stated purpose of streamlining the litigation process, Moving Plaintiff's motion is denied.

Based

on the foregoing, Moving Plaintiff's motion for leave to amend their 5AC and file the proposed 6AC is denied.

Conclusion

Moving

Plaintiff's motion for leave to amend the 5AC is denied.

Moving Party to give notice.

Dated: July _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court